(Sec. 1, 59 Stat. 590, sec. 2, 65 Stat. 407; 33 U. S. C. 360, 143a. Interprets or applies sec. 4, 62 Stat. 250, sec. 6, Rule 13 (b), 65 Stat. 415; 33 U. S. C. 356, 145k)

Dated: March 18, 1954.

[SEAL] MERLIN O'NEILL,
Vice Admiral, U. S. Coast Guard, Commandant.

[F. R. Doc. 54-2063; Filed, Mar. 23, 1954; 8:47 a. m.]

TITLE 35—PANAMA CANAL

Chapter I—Canal Zone Regulations

PART 4—OPERATION AND NAVIGATION OF PANAMA CANAL AND ADJACENT WATERS

EXEMPTIONS FROM COMPULSORY PILOTAGE

Pursuant to the authority vested in the Governor by §§ 4.11 and 4.22 of Title 35 of the Code of Federal Regulations, § 4.23 is hereby amended to read as follows:

§ 4.23 *Exemptions from compulsory pilotage.* The following vessels are exempt from compulsory pilotage, except when the Port Captain considers a pilot necessary: *Provided, however,* That a pilot will nevertheless be furnished any such exempted vessel if requested by the commander or master thereof:

(a) Vessels of the Fifteenth Naval District, except as limited by paragraph (e) of this section.

(b) Local craft, such as United States Army and United States Navy minesweepers and tugs, and Panama Canal Company tugs and equipment, except as limited by paragraph (e) of this section.

(c) Small craft under 65 feet in length and drawing not over six feet of water that call at terminal ports without transiting the Canal.

(d) Any vessel that makes frequent calls to Canal Zone waters and whose current officers and crew are, in the opinion of the respective Port Captain, capable, by reason of such frequent calls, of safely navigating within Canal Zone waters, except as limited by paragraph (e) of this section.

(e) Vessels and craft enumerated in paragraphs (a), (b), (c) and (d) of this section may be permitted to transit the Canal without a pilot when, in the opinion of the respective Port Captain, the current officers and crew have the necessary experience and ability to make safe transit. Whenever any such vessel or craft makes transit without a pilot the respective Port Captain shall dispatch it with a larger vessel carrying a pilot, and it shall lock through with that vessel. The respective lock superintendents shall determine whether locomotives shall be used. The Port Captain, Balboa, shall control the movement of such vessel or craft through Gaillard Cut so as to minimize the danger of its being a navigational hazard to larger vessels.

(f) Any other vessel or craft as and to the extent exempted by the Marine Director.

(Sec. 5, 37 Stat. 562, as amended; 2 CZ Code 9, 48 U. S. C. 1318. E. O. 9746, 11 F. R. 7329, 3 CFR, 1946 Supp.)

[SEAL] J. S. SEYBOLD,
Governor.

MARCH 15, 1954.

[F. R. Doc. 54-2052; Filed, Mar. 23, 1954; 8:45 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 945]

ALASKA

REVOKING EXECUTIVE ORDER NO. 5214 OF OCTOBER 30, 1929

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910, c. 421 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 5214 of October 30, 1929, withdrawing certain areas of land and water in Alaska for use of the United States Navy Department for naval purposes, which was partially revoked by Executive Order No. 8736 of April 14, 1941 and by Public Land Order No. 903 of July 3, 1953, is also revoked so far as it affects the following-described lands:

A. THE COLD BAY-DOLGOI ISLAND AREA

All that area lying between latitude 54°49' North and 55°20' North, longitude 161°38' West and 162°44' West; less a tract of approximately 18 acres included in the revocation made by Executive Order No. 8736 of April 14, 1941.

The area described contains approximately 485,858 acres of land and 517,710 acres of water.

B. THE WIDE BAY AREA

All that area lying between latitude 57°15' North and 57°26' North and longitude 156° 01' West and 156°35' West.

The area described contains 61,162 acres of land and 116,531.20 acres of water.

A substantial portion of the Cold Bay-Dolgoi Island area is included in the withdrawal for military purposes made by Public Land Order No. 103 of March 27, 1943.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on the 35th day after the signing of the order, at which time the lands shall, subject to valid existing rights and to the provisions of existing withdrawals, be opened to settlement under the homestead laws and the homesite act of May 26, 1934 (48 Stat. 809; 48 U. S. C. 461), and to those forms of appropriation only by qualified veterans of World War II for whose service recognition is granted by the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279-284), as amended, and by other qualified persons entitled to credit for service under the said act. Commencing at 10:00 a. m. on the 126th day after the date of this order, any of such land not settled upon by veterans or other persons entitled to credit for service shall become subject to settlement and other forms of appropriation by the public generally in accordance with appropriate laws and regulations.

Applications for the lands, which shall be filed in the Land Office, Bureau of Land Management, Anchorage, Alaska, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations to the extent that such regulations are applicable. Applications under the homesite or homestead laws shall be governed by the regulations contained in Parts 64 and 66, inclusive, of Title 43 of the Code of Federal Regulations.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Anchorage, Alaska.

[SEAL] ORME LEWIS,
Assistant Secretary of the Interior.

MARCH 18, 1954.

[F. R. Doc. 54-2049; Filed, Mar. 23, 1954; 8:45 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[Docket No. 10783]

PART 3—RADIO BROADCAST SERVICES

TELEVISION BROADCAST STATIONS; TABLE OF ASSIGNMENTS

In the matter of amendment of § 3.606 *Table of assignments,* rules governing television broadcast stations; Docket No. 10783.

1. The Commission issued a notice of proposed rule making (FCC 53-1566), published in the FEDERAL REGISTER on December 3, 1953 (18 F. R. 7801), and on January 29, 1954, the Commission issued a notice of further proposed rule making (FCC 54-118), published in the FEDERAL REGISTER on February 4, 1954 (19 F. R. 654), concerning proposed changes in the television Table of Assignments for Lexington, Rock Island, Sneedville, and Jackson, Tennessee, Tupelo, Mississippi and Munford, Alabama.

2. The time for filing comments in this proceeding expired on February 26, 1954. Comments and counterproposals were filed by the Alabama Educational Television Commission, Mr. Frank Kyle Spain, Mr. Birney Imes, Jr., and the Tennessee Educational Television Commission. In the Commission's notice of further proposed rule making Dixie Broadcasting Company, permittee of Station WDXI-TV, Jackson, Tennessee, was ordered to show cause why its authorization should not be modified so as to specify operation on Channel 11 in lieu of Channel 9. A reply to this order was filed by the Dixie Broadcasting Company.

3. In his petition, Mr. Frank Kyle Spain urged that the following changes in the Table of Assignments be made:

City	Channel No.	
	Present	Proposed
Tupelo, Miss.	38	9−, 38
Jackson, Tenn.	9−, 16+	11, 16+

In support of the proposal petitioner urged that the proposed amendments conform to the Commission's rules and standards; that they constitute a more efficient utilization of the available channels; and that in view of the fact that Station WDXI–TV authorized for operation on Channel 9 at Jackson, Tennessee has not yet been constructed and will not commence operation before June, 1954, the change from Channel 9 to 11 in Jackson would not inconvenience the permittee of WDXI–TV.

4. The Alabama Educational Television Commission had proposed the following changes:

City	Channel No.	
	Present	Proposed
Munford, Ala.	None	*7
University, Ala.	*7	None

In support of the proposal petitioner urged that the proposed amendments conform to the Commission's rules and standards; that it would permit the utilization of Mt. Cheaha, the highest point in the State of Alabama for the educational station thereby providing the greatest possible coverage to the most populated areas of the state; and that an application will be filed for the use of the channel in the event the amendment as proposed is adopted.

5. The Tennessee Educational Television Commission had proposed the following changes in the table:

City	Channel No.	
	Present	Proposed
Lexington, Tenn.	None	*11
Rock Island, Tenn.	None	*7
Sneedville, Tenn.	None	*2+

In support of the requested amendment, petitioner urged that there are presently assigned 4 television channels in the State of Tennessee which are reserved for educational use; that these assignments would not provide for complete coverage of the state; that the addition of the three assignments as requested would provide almost complete coverage of the state; and that these assignments conform to all the requirements of the Commission's rules and may be made without any other changes in the table.

6. The proposal of Frank Kyle Spain conflicted with that of the Tennessee Educational Television Commission in that Channel 11 could not be assigned both to Lexington, Tennessee and Jackson, Tennessee under our assignment spacing requirement rules. Similarly, the proposal of the Alabama Educational Television Commission conflicted with that of the Tennessee Commission in that Channel 7 could not be assigned both to Rock Island, Tenn., and Munford, Alabama. The Tennessee Commission filed comments in which it modified its request so as to delete the request for the assignment of Channel 7 to Rock Island, Tennessee and offered a counterproposal which is aimed at removing the conflicts with the other two proposals as follows:

City	Channel No.	
	Present	Proposed
Munford, Ala.	None	*7
University, Ala.	*7	None
Tupelo, Miss.	38	9−, 38
Cookeville, Tenn.	24	24, *69
Crossville, Tenn.	None	*77
Jackson, Tenn.	9−, 16+	7+, 16+
Lexington, Tenn.	None	*11
Sneedville, Tenn.	None	*2

This proposal would also require a change in the offset requirement only of the assignment of Channel 9 to Hattiesburg, Mississippi, from Channel 9— to Channel 9, and of the assignment of Channel 11 to Meridian, Mississippi, from Channel 11 to Channel 11—. The Tennessee Commission urged that this counterproposal would remove the conflicts with the other two proposals; would be technically feasible; and would make possible almost complete coverage of the State of Tennessee with educational programs. The assignments for Cookeville and Crossville were proposed in order to replace Channel 7 previously proposed for Rock Island. The Alabama Commission filed comments in support of its proposal and stated that the modification of the Tennessee Commission proposal insofar as it deleted the request for Channel 7 at Rock Island, removed the conflict between the two. Petitioner further urged that Channel 74 be made available to University and be reserved for noncommercial educational use as a replacement for Channel 7.

7. Frank Kyle Spain urged that both his proposal and that of the Alabama Commission could be granted and that two assignments could be made available to the Tennessee Commission in the event Channel 7 were assigned to another community instead of Rock Island.

8. In response to the Show Cause Order, The Dixie Broadcasting Company objected to the use of Channel 11 at Jackson on the grounds that second harmonic interference could be expected from the operation of FM Station WTJS–FM operating on 100.7 Mc. at Jackson. Dixie Broadcasting Company, however, consented to the use of Channel 7 at Jackson as proposed by the Tennessee Educational Television Commission.

9. The counterproposal of the Tennessee Commission and the proposal of the Alabama Commission are technically feasible and the Commission is of the view that the reassignment of channels as proposed would more efficiently utilize the available spectrum and would be in the public interest.

Accordingly, it is ordered, That the counterproposal of the Tennessee Educational Television Commission and the petition of the Alabama Educational Television Commission and the petition of Frank Kyle Spain, insofar as it requests the assignment of Channel 9 to Tupelo, are adopted.

It is further ordered, That effective 30 days after publication in the FEDERAL REGISTER the outstanding authorization of Station WDXI-TV in Jackson, Tennessee (BMPCT–1824) will be modified to specify operation on Channel 7 in lieu of Channel 9, and an appropriate authorization will be issued to the Dixie Broadcasting Company. *It is further ordered,* That effective 30 days after publication in the FEDERAL REGISTER, the table of assignments, contained in § 3.606, rules governing television broadcast stations, is amended as follows:

1. Add to the table:

City:	*Channel No.*
Munford, Ala.	*7
Crossville, Tenn.	*77
Lexington, Tenn.	*11
Sneedville, Tenn.	*2+

2. Amend the table to read:

City:	*Channel No.*
University, Ala.	*7+
Tupelo, Miss.	9−, 38
Cookeville, Tenn.	24, *69
Jackson, Tenn.	7+, 16+

3. Change the Channel 9 assignment in Hattiesburg, Mississippi, from 9— to 9.

4. Change the Channel 11 assignment in Meridian, Mississippi, from 11 to 11—.

10. Authority for the adoption of the proposed amendments is contained in sections 4 (i), 301, 303 (c), (d), (f), and (r) and 307 (b) of the Communications Act of 1934, as amended.

(Sec. 4, 48 Stat. 1066, as amended; 47 U. S. C. 154. Interprets or applies secs. 301, 303, 307, 48 Stat. 1081, 1082, as amended, 1084; 47 U. S. C. 301, 303, 307)

Adopted: March 17, 1954.

Released: March 19, 1954.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 54-2064; Filed, Mar. 23, 1954; 8:48 a. m.]